chestnut cambronne
ATTORNEYS AT LAW

Chestnut Cambronne PA
100 Washington Avenue South
Suite 1700
Minneapolis, MN 55401-2138
T 612.339.7300
F 612.336.2940
www.chestnutcambronne.com

Gretchen S. Schellhas
Gschellhas@Chestnutcambronne.com

August 8, 2025

Gerald A. Jackson, Jr.
8031 Xerxes Avenue South #222
Bloomington, MN 55431

Re: SummerHill Association, Inc.
Notice of Violation of Governing Documents and Rules and Regulations
Property Address: 8031 Xerxes Avenue South, #222, Bloomington, MN 55431
Our file no. 20140978.003

Dear Owner:

Our firm represents the SummerHill Association, Inc. ("Association"). We are writing to advise of its intention to assess fines for the following:

Violations	Fines to be Assessed
- Willfully or negligently causing an annoyance or nuisance to other Unit Owners and Occupants – by permitting or causing urine and fecal matter to drop from your balcony to the balcony below you. Violation of Rule I. E.	$100
- Excessive noxious odor caused by pet urine/feces left on your balcony and allowing same to drop to balcony below you This is grounds to remove the pet in addition to a fine Violation of Rule VI. B	$100
- Failure to clean balcony and interfering with use and Enjoyment of the balcony below your Unit. Rule IX. B	$100
- Failure to have Pet Registration on File. Rule VI. C.	$100

Damage	Estimated Repair Cost
- Causing damage to the balcony the beneath your balcony, damage to the siding beneath your balcony	$800 for lower Unit

RULES FOR HEARINGS

If you timely request a Hearing, the following apply:

1. Only the Owner is allowed to request the Hearing and to attend the Hearing; Owners may NOT send third parties, whether property managers, occupants, tenants, attorneys in the Owners' place.

2. The Hearing is not a formal Hearing during which witnesses are examined under oath. Rather, it is more of a meeting between the Unit Owner and the Board or a committee appointed by it.

3. The Association is not allowing Owners to appear with attqrneys without prior written permission from the Board of Directors. If granted, keep in mind the Associaiton then will have its attorney attend the Hearing and, if the Associaiton is not convinced to waive all of the fines, it will likely resolve to assess the attorneys' fees and costs not only of this letter but the attorneys' time attending the Hearing to your account.

Ultimately, if the violations continue, the Association may need to seek injunctive relief to enjoin you from allowing your pet to urinate on the balcony and/or to remove the pet in accordance with the Rules and Declaration and Rules. If that is necessary, all of the attorneys' fees and costs incurred in such an action will be assessed to your account for enforcement of the Governing Documents.

Very truly yours,

CHESTNUT CAMBRONNE PA

Gretchen S. Schellhas

GSS

(from running urine), damage to wood portions of balcony/supports (from urine). Declaration Art IX, Section 1 and Minn. Stat. Section 515B.3-115(g) and 515B.3-107(a)

- Causing damage to your Unit's balcony from the urine	Cost to repair is unknown inspection is made

Opportunity to Be Heard

In accordance with said Declaration and Chapter 515B, before the fines are assessed, you have the right to request an opportunity to be heard ("Hearing") before the Board of Directors or a Committee appointed by it, by providing **written notice of that request** to the Board of Directors care of our office within ten (10) days after the date of this letter. You would need to attend this hearing; you may not send third parties in your place. If you timely request a Hearing, the Board of Directors will set Hearing date and provide notice to you (through this office). The Hearing will be held within thirty (30) days of your written request for a Hearing. You will be provided at least ten (10) days' notice of the Hearing. The Hearing may be held in person or by Zoom.

If you do request a Hearing, the remedies to be imposed (discussed herein) will not take effect until a Hearing is completed or, until the matter is otherwise resolved by mutual agreement of the Board of Directors and the Unit Owner, whichever first occurs. If the Hearing is held, the Board's decision will be mailed to you and, shall be binding upon the parties. If you do <u>not</u> request a Hearing or, fail to appear at the duly noted Hearing, the remedies discussed herein will be imposed without further notice.

NOTICE

1. All unpaid fines and costs to repair damages are liens which, if not satisfied, could lead to foreclosure of the lien against the Owner's Unit.
2. If the fines and other allowable charges are not paid, the amount may increase as a result of the imposition of attorney fees and other collection costs.
3. The Unit Owner may obtain homeownership assistance which is available from the Minnesota Homeownership Center.
4. No legal fees and costs for enforcement of the continuing violations and new violation the Governing Documents will be assessed until and unless the Owner fails to request a Hearing, fails to appear at a requested duly noted Hearing, or after a requested Hearing is concluded and the Board of Directors resolves to assess fines it intends to assess.